

24VECV04148 24VECV04148

County: los-angeles

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Tentative Ruling

Delena v. A Team Security, Case no.

24VECV04148

Hearing date September 9, 2026

Defendant

ATS' Motion for Reconsideration

Plaintiffs

R. and T. Delena sued defendants Deanco Healthcare, LLC dba Mission Community Hospital ("Deanco") and A Team Security, Inc. ("ATS") for negligence, premises liability and loss of consortium. Plaintiffs allege R. Delena was stabbed by an unidentified assailant while attempting to enter the hospital. Defendants each filed motions for summary judgment; Deanco filed a joinder to ATS's motion. Plaintiffs opposed both.

The

court granted Deanco's MSJ and denied ATS' MSJ. See 7/20/26 Min. Order. ATS moves for reconsideration. Plaintiff opposes.

Per

Code Civ. Proc. §1008(a), a party may seek reconsideration of a prior ruling upon new or different facts or law and a showing of reasonable diligence in not producing such evidence earlier. A motion for reconsideration is proper when critical facts or documents emerge after the original motion which materially affects the court's prior ruling. See *Gilberd v. AC Transit* (1995) 32

Cal.App.4th 1494, 1500.

ATS

argues the court's tentative ruling of 7/9/26 granted ATS' MSJ and Deanco's MSJ, finding plaintiffs and expert Marcisz failed to present any evidence of a prior similar violent criminal stabbing such that no triable issue of fact exists as to duty. Decl. O'Meara, para. 2; exh. A. ATS argues the court's subsequent ruling of 7/20/26 denying ATS' MSJ, wherein the court "denied ATS' Motion for Summary Judgment on a single, narrow theory that appeared only when the Court amended its tentative ruling: that a triable issue exists as to whether ATS assumed a duty when one of its guards 'identified Doe as a possible threat, spoke to him and began the task of requiring Doe to leave the premises,' and then allegedly failed 'to ensure Doe actually left the premises and did not return.'" Id. at paras. 11-12, exh. B.

ATS

argues the court's change in its tentative ruling constitutes new or different facts for purposes of Code Civ. Proc. §1008(a). This is incorrect. A motion for reconsideration is proper when critical facts or documents emerge which materially affect the court's prior ruling. See *Gilberd*, supra.

The court's own final ruling on a matter cannot, by definition, affect that same ruling. ATS' argument that "[a]n internal tension exists in the order" is equally unavailing; the court's final ruling on ATS' MSJ turns on the court's interpretation of the issue of duty and the specific triable issue of fact as to whether ATS adopted a duty. Disagreement with the court's interpretation of the law or facts is not a basis for reconsideration. Id.

ATS

requests in the alternative that the court invoke its own "inherent authority" to reconsider its ruling. Plaintiffs argue this is counter to law. Plaintiffs are correct; per *Le Francois v. Goel* (2005) 35 Cal.4th 1094 this request is expressly prohibited. The California Supreme Court noted "[u]nless the requirements of section 437c, subdivision (f)(2), or 1008 are satisfied, any action to reconsider a prior interim order must formally begin with the court on its own motion." Id. at 1108-1109. ATS cannot bring a motion to compel, or in the alternative request reconsideration, under *Le Francois*, supra. Any such reconsideration must occur only by the court's own initiative. There is no basis for reconsideration. DENIED.